

Consumption bill challenge dismissed for alternative remedy under clause 6.5

Allahabad High Court · Division Bench · 9 November 2009 · Writ-C No. 59634 of 2009 · **Writ dismissed for alternative remedy under clause 6.5.**

HEADNOTE

A writ petition challenging the correctness of a consumption bill is not maintainable where paragraph 6.5 of the U.P. Electricity Supply Code, 2005 gives a right to object to the bill. The petition was dismissed on the ground of alternative remedy. A later application to correct or modify that order was rejected as misconceived.

FACTUAL SUMMARY

Surendra Kumar Dubey filed a writ petition in the Allahabad High Court challenging the correctness of a consumption bill raised by respondent no. 2, the electricity licensee. Counsel for the licensee stated that the petitioner could raise objections to the bill under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench heard both sides on 9 November 2009. A later application seeking correction or modification of that order was rejected as misconceived on 2 December 2009.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternative-remedy

HOLDING

A writ petition challenging the correctness of a consumption bill is dismissed where paragraph 6.5 of the U.P. Electricity Supply Code, 2005 affords a right to raise objections to the bill; the Code remedy is treated as an adequate alternative to writ jurisdiction. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ petition challenging the correctness of a consumption bill is not maintainable where paragraph 6.5 of the U.P. Electricity Supply Code, 2005 gives a right to object to the bill. The petition was dismissed on the ground of alternative remedy.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CONSUMPTION BILL

Not examined on merits; petitioner relegated to the clause 6.5 objection remedy. ¶ 1